

23NWCV00097 23NWCV00097

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CL%2C08%2F04%2F2026

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Case Number: 23NWCV00097 Hearing Date: August 4, 2026 Dept: L

Plaintiffs Angie Mejia Antunez

and Darwin Zambrano's Motion for Attorney's Fees is GRANTED, in part.

Plaintiffs

are awarded \$20,462.00 in attorney's fees and \$6,868.42 in costs.

Plaintiff to give notice.

Background

This is a lemon law action regarding a 2021 Honda Civic. On January 11, 2023, Plaintiff Mabel Lopez Garcia ("Plaintiff") filed this action against Defendant American Honda Motor Co., Inc. ("AHM") and Does 1 to 10. The Complaint alleges two cause of action for 1) Violation of Song-Beverly Act - Breach of Express Warranty, and 2) Fraudulent Inducement – Concealment.

On January 16, 2026, Plaintiff filed the Notice of Settlement (Conditional).

On March 17, 2026, the Court dismissed the case without prejudice. (3/17/25 Minute Order.)

Plaintiff now move for attorney's fees in the amount of \$31,419.50, with a 1.5 loadstar multiplier in the amount of \$15,709.75, for a total fee award of \$47,129.25 in attorneys' fees. Plaintiff also seeks \$8,291.67 in costs and expenses.

Legal Standard

The Song-Beverly Act provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If the buyer

prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code § 1794, subd. (d).)

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of

the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48); see also *Meister v. Regents of University of California* (1998) 67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

Discussion

Here, it is undisputed that Plaintiff is the prevailing party in this action and is entitled to reasonable attorney's fees. The only issue pending before this Court is

the amount of the award.

Reasonable Hourly Rates

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM

Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) “The experienced trial judge is the best judge of the value of professional services rendered in his court [...]” (Ibid.) “[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs’ attorney, are satisfactory evidence of the prevailing market rate.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Counsel’s fees and experience are summarized as follows:

Name

Position

Years of Experience

Hourly Rate

Brian Cohen

Associate

9

\$515.00

Chris Swanson

Partner

15

\$525.00 in 2024,

\$575.00 in 2025

Elvira Kamosko

Associate

5

\$375.00

Heidi Alexander

Associate

9 (in CA)

\$395.00

Harita Nandivada

Associate

5

\$400.00

Summer Smith

Trial Counsel

25

\$625.00

Sundeep Samra

Partner

8

\$450.00

Timothy Lupinek

Associate

10

\$450.00 in 2024,

\$500.00 in 2025,

\$525.00 in 2026

Thach Tran

Associate

5 (in CA)

\$425.00 in 2024,

\$475.00 in 2025

(Kirnos Decl., ¶ 27.)

Plaintiff asserts that counsel's rates are reasonable based on 1) the hourly rates as set forth above, and 2) numerous trial court orders in and around Los Angeles affirming that such rates are reasonable. (Kirnos Decl., ¶ 29, Exhs. W-HH.)

In opposition, AHM argues that Plaintiff counsel's requested rates are excessive and seek premium rates for non-attorney work. AHM asserts that Plaintiff's examples of orders approving the rates in other cases are not dispositive in this case. AHM suggests that the rates should be reduced based on a straightforward nature of this case.

Based on counsel's declaration and the Court's own experience with the billing rates of Los Angeles-area counsel in similar lemon law cases, the Court finds Plaintiff's counsel's rates are reasonable. The Court addresses any issue of hours billed for non-legal work at attorney rates in the "reasonable fees" section.

Reasonable Fees

The Court is vested with discretion to determine which claimed hours were reasonably spent, and what an

attorney's reasonable hourly rate is. (Dover Mobile Estates v. Fiber Form Products, Inc. ("Dover") (1990) 220 Cal.App.3d 1494, 1501); see also Flannery v. California Highway Patrol (1987) 61 Cal.App.4th 629, 644 ["We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court."].)

Plaintiff asserts that the total hours spent on this case is reasonable. Plaintiff has submitted a billing invoice identifying all hours spent on this case. (Kirnos Decl., ¶ 2, Exh. A.) Further, the billing entries were audited to reduce or eliminate "any time deemed excessive, duplicative, or otherwise unreasonable under the circumstance [...]." (Kirnos Decl., ¶ 21.) The major tasks in this case included the following: 1) filing and attending the hearing on Plaintiff's Motion for Summary Adjudication to AMH's fifth and eighth affirmative defenses, which the Court granted, 2) conducting Plaintiff's deposition, 3) filing and attending the hearing on Plaintiff's Motion to Compel AMH's Person Most Qualified (PMQ), which the Court granted, 4) attending the mandatory Settlement Conference, and 5) filing and attending the hearing on Plaintiff's ex parte application to continue trial, which the Court granted, 5) attending the deposition of AHM's PMQ, 6) opposing and attending the hearing on AHM's Motion for Summary Adjudication, which was continued, and 6) taking a non-appearance of AHM's Custodian of Records.

In opposition, AHM argues that the Court should exclude unreasonable and unnecessary time billed. AHM notes that this case was resolved by AHM's Code of Civil Procedure section 998 offer, which AHM presented on September 29, 2025 and Plaintiff accepted on October 28, 2025. (Tolmasoff Decl., ¶ 12, Exh. D.) AHM submits a billing entry table suggesting specific entries to be stricken or reduced. (Tolmasoff Decl., ¶ 7, Exh. A.)

AHM

first argues that Plaintiffs cannot recover fees incurred in relation to Plaintiffs' fraud claim. Specifically, the Court should strike entries related to AHM's Motion for Summary Judgment, which was directed only to Plaintiff's fraud cause of action. That Motion was continued and was ultimately taken off-calendar pursuant to the settlement.

Further, AHM argues that Plaintiff should not recover for premature trial preparation where trial was continued twice and never proceeded. For example, Plaintiff filed nine motions

in limine on April 30, 2025, when trial was then set for June 11, 2025. (Tolmasoff Decl., ¶ 14.) Work related to the motions in limine should be stricken. On May 6, 2026, Plaintiff filed an ex parte application to continue trial, which the Court granted. Trial was continued to September 22, 2025. (Ibid.) On July 22, 2026, trial was continued again to March 9, 2026 pursuant to Joint Stipulation filed by the parties. (Tolmasoff Decl., ¶¶ 13, 15, Exh. E.) AHM argues that entries related to the ex parte to continue trial (including preparation, travel, appearance) should be stricken where the continuance was 1) unopposed, and 2) not reasonably necessary to the result achieved.

AHM additionally argues that entries for administrative, clerical, routine case-management, vague, or template-based work should be stricken. For example, AHM objects to Plaintiff's October 14, 2025 entry for taking a certificate of non-appearance at a deposition of AHM's custodian of records. AHM served an objection indication that no witness would be produced on that date, and Plaintiff has not shown that the nonappearance procedure was reasonably necessary to the litigation. (Tolmasoff Decl., ¶ 10, Exh. B.)

Lastly, AHM objects to the work spent (and anticipated work) on the instant fee motion as excessive, "post-settlement" work. Overall, Plaintiff should not be awarded more than \$14,842.15 in attorney's fees.

The Court first addresses AHM's request to strike entries related to the fraud cause of action. In reply, Plaintiffs cite to *Santana v. FCA US, LLC* ("Santana") (2020) 56 Cal.App.5th 334 to assert that apportionment is not required here. In that case, the court declined to apportion fees between Song-Beverly Act claims and fraud claims on the grounds that the causes of action encompassed a single set of facts. (Id. at p. 349.) However, the procedural posture of *Santana* is distinguishable, as there was jury verdict on both claims in that case. (Id. at p. 338.) The *Santana* court noted there was no practical method of apportioning fees spent on fraud issues and Song-Beverly Act issues. (Id. at p. 350.) Such issue is not present here where the fees at issue clearly involve AHM's Motion for Summary Judgment, which only targeted the fraud cause of action. The Court is not persuaded by Plaintiff's argument that "[w]hile the MSA opposition work did address fraud, the substance of the work was primarily arguing the common nexus of facts: [AHM] sold Plaintiff a lemon and willfully failed to promptly repurchase or replace it."

(Repl., 4:6-8.) The Court thus finds the time spent on this matter was not reasonably incurred in furtherance of Plaintiffs' Song-Beverly causes of action. The Court accordingly strikes the relevant billing entries.

Next, the Court addresses AHM's objections regarding the motions in limine and the Plaintiff's May 6, 2026 ex parte application to continue trial. In reply, Plaintiff argues that AHM's assertion that the motions in limine and other trial preparation did not contribute to eventual settlement is speculative. As to the ex parte application, Plaintiff argues that it is irrelevant that ex parte was unopposed by AHM. Plaintiff was required to prepare and argue that ex parte application if the Court disagreed. Plaintiff states that travel time was reasonably incurred because "the Court was requiring an in-person appearance at this hearing and Ms. Smith was the only attorney at Knight Law that was available to attend." (Reply, 7:15-17.) The Court finds that Plaintiff is entitled to fees incurred to prepare motions in limine, reasonably billed at .3 hours per motion, and to prepare and attend the hearing on the ex parte application. It is only in retrospect that such work appears unnecessary. As to travel for the ex parte, Plaintiff has provided no evidence that an in-person appearance was required, and the Court finds that the \$8,562.50 (13.7 total hours) incurred for travel is excessive and non-legal work.

The Court next discusses the costs incurred in relation to taking the non-appearance of AHM's Custodian of Records. The Court finds that these costs were reasonably incurred. Again, it is only in retrospect that such work appears unnecessary.

Lastly, the Court addresses the work to prepare the instant fee motion, prepare the reply, and attend the hearing. The Court finds that Plaintiff is entitled to costs incurred for this Motion, but finds that the amount is unreasonable. Incorporating Plaintiff counsel's reply declaration, the total amount incurred in relation to this fee motion is \$3,712.00 (7.2 hours). (See Cohen Reply Decl., ¶¶ 7-10.) The Court finds that this amount is around 12 percent of the entire amount of base attorney's fees sought. The Court reduces the time spent on this Motion by 1.7 hours.

The Court has also conducted an independent review of the billing table and exercises its discretion to strike certain entries as vague, excessive, duplicative, or related to inter-office

communications. (See *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 253 [affirming reduced fee award of \$95,900 from the proposed amount of \$344,639 where trial court found counsel sought fees for “dual billing” entries and for tasks that “should not have required anything more than [a] slight factual modification to [an] existing boilerplate”].)

The Court

ultimately finds Plaintiffs are entitled to \$20,462.00 in attorney's fees.

Lodestar Multiplier

The lodestar amount “may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (*Bernardi* v. County of Monterey, (2008) 167 Cal.App.4th 1379, 1399 [citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132].) The purpose of any lodestar and the increase thereto “is intended to approximate market-level compensation for such services” and is entirely discretionary. (*Ibid.*) “The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action.” (*Weeks v. Baker & McKenzie*, (1998) 63 Cal.App.4th 1128, 1171-72.)

Plaintiffs assert a 1.5

multiplier is justified based on the contingent nature of lemon law cases, the risk associated with taking on the case, and the delay in payment. The Court notes that, in the moving papers, Plaintiff inconsistently seeks “a 1.3 enhancement,” “a 1.2 enhancement,” and “a multiplier of 1.5.” (Mot., 12L28, 13:4-6.)

In opposition, AHM asserts

that a lodestar multiplier is unwarranted where this case involved no novel legal questions and no exceptional result was achieved.

Plaintiffs’

request to award a 1.5 multiplier is denied. The Court finds there is no basis to award a multiplier considering the time and skill of counsel are compensated with a mandatory fee award. Also, there is nothing before the

Court to suggest this relatively straightforward case required extraordinary legal skill and/or required counsel to bear unnecessary risk. Nothing before this Court suggests that special skill was displayed, or an extraordinary result was obtained by Plaintiffs' counsel.

Costs

Plaintiff seeks \$8,291.67 in costs pursuant to the Memorandum of Costs filed on March 19, 2026.

In opposition, AHM particularly objects to costs sought in relation to the Memorandum of Costs "Item 13: Other" category, which consists of attorney services and messenger court filings and service, court appearance professionals, travel, and sanctions. AHM asserts that Plaintiff provided no supporting documentation showing those amounts were reasonable or necessary to the litigation. Further, AHM objects to costs incurred for depositions or non-appearance fees that did not advance the litigation.

In reply, Plaintiff submits its itemized internal worksheet used to draft the Memorandum of Costs, in addition to supporting invoices for the "Item 13: Other" category costs. (Cohen Reply Decl., ¶ 4, Exh. A.)

The Court generally accepts Plaintiff's documentation in support of the "Item 13: Other" category costs. However, the Court finds that travel costs, unless for an authorized witness, are not recoverable per *Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 775-76 ["Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation."].) The Court thus strikes the \$1,423.25 sought for "Travel" costs in the Memorandum of Costs.

Accordingly, Plaintiff is awarded \$6,868.42 in costs and expenses.